CHAPTER 6

JUDICIARY

CHAPTER ESSENCE AT A GLANCE:
Understand judicial independence, Supreme Court jurisdiction, Public Interest Litigation (PIL), judicial review, the Basic Structure doctrine, and parliamentary-judicial interactions.

4 CORE PRINCIPLES TO UNDERSTAND FIRST

• **Constitutional Safeguards for Judicial Independence:** Independence of judges is safeguarded through security of tenure, salaries charged on the Consolidated Fund, stringent impeachment procedures under Article 124, and prohibition on discussing judicial conduct in legislatures.

• **Comprehensive Jurisdiction of the Apex Court:** The Supreme Court exercises Original Jurisdiction over inter-governmental disputes, Appellate Jurisdiction over civil and criminal appeals, Advisory Jurisdiction on presidential references, and Writ Jurisdiction under Article 32.

• **Public Interest Litigation and Judicial Activism:** By relaxing the traditional requirement of locus standi, PIL enables any public-spirited citizen to approach the court on behalf of oppressed groups, expanding fundamental rights to include clean environment and livelihood.

• **Judicial Review and the Basic Structure Doctrine:** The Supreme Court reviews legislative and executive actions for constitutional validity under Article 13 and limits Parliament's amending power under Article 368 through the landmark 1973 Basic Structure doctrine.

ESSENTIAL FORMULAS & GOVERNING EQUATIONS

$$\text{Supreme Court Scope} = \text{Original (Art. 131)} + \text{Appellate (Art. 132-136)} + \text{Advisory (Art. 143)} + \text{Writ (Art. 32)}$$

Four constitutional pillars of Supreme Court judicial power

$$\text{Amending Power (Art. 368)} \subset \text{Constitution} \Rightarrow \text{Cannot Abrogate Basic Structure}$$

Kesavananda Bharati doctrine preventing alteration of essential constitutional identity

CRUCIAL EXAM PRECAUTIONS & VALUATION RUBRIC SECRETS

• **Alert:** The advisory opinion given by the Supreme Court to the President under Article 143 is not legally binding on the Government.

• **Alert:** Judges of the Supreme Court and High Courts cannot be removed at the discretion of the executive; removal requires a special majority in both Houses of Parliament.

HIGH-YIELD CENTUM QUESTIONS & STEP-BY-STEP EXPLANATIONS

1. Mention any two constitutional provisions that ensure the independence of the Indian judiciary. [Score: 2 Marks]

Answer & Key Valuation Steps:

• **Security of Tenure:** Judges of the Supreme Court hold office until age 65 and can be removed only by presidential order after an address passed by special majority in both Houses of Parliament. **[1 Mark]**

• **Charged Salaries:** Salaries and allowances of judges are charged on the Consolidated Fund and cannot be diminished during their term, except in a financial emergency. **[1 Mark]**

2. What is meant by Advisory Jurisdiction of the Supreme Court under Article 143? [Score: 3 Marks]

Answer & Key Valuation Steps:

• **Presidential Reference:** The President of India can refer any question of law or fact of public importance to the Supreme Court for its opinion. **[1 Mark]**

• **Judicial Deliberation:** The Court considers the reference after hearing arguments, though it is not bound to render an opinion on non-pre-constitutional treaty disputes. **[1 Mark]**

• **Non-Binding Nature:** The opinion tendered by the Supreme Court is advisory and not legally binding on the executive government. **[1 Mark]**

3. Explain the Original Jurisdiction and Appellate Jurisdiction of the Supreme Court of India with examples. [Score: 4 Marks]

Answer & Key Valuation Steps:

• **1. Scope of Original Jurisdiction (Article 131):** Cases that originate directly in the Supreme Court, without having been heard in any lower court. **[1 Mark]**

• **2. Original Jurisdiction Examples:** Federal disputes between the Government of India and one or more States, or between two or more States. **[1 Mark]**

• **3. Scope of Appellate Jurisdiction (Articles 132 to 136):** Authority to hear appeals against verdicts rendered by High Courts in constitutional, civil, and criminal matters. **[1 Mark]**

• **4. Special Leave Petitions:** Under Article 136, the Court can grant special leave to appeal against any judgment from any court or tribunal in India. **[1 Mark]**

4. What is Public Interest Litigation (PIL)? Highlight two positive contributions and two concerns associated with judicial activism. [Score: 4 Marks]

Answer & Key Valuation Steps:

• **Concept of PIL:** A legal mechanism where any citizen or public group can petition the court on behalf of disadvantaged citizens who cannot access justice themselves. **[1 Mark]**

• **Positive Contribution 1:** Democratized access to justice, protecting bonded laborers, undertrial prisoners, and marginalized communities. **[1 Mark]**

• **Positive Contribution 2:** Expanded the scope of Article 21 to include right to clean environment, shelter, and medical care. **[1 Mark]**

• **Concerns (Judicial Overreach):** Overburdened courts with frivolous petitions and sometimes encroached on executive policy domains, blurring separation of powers. **[1 Mark]**

5. Examine the historic significance of the Kesavananda Bharati case (1973) in defining the limits of parliamentary power. **[Score: 5 Marks]**

Answer & Key Valuation Steps:

• **Constitutional Conflict:** Emerged from a series of clashes between Parliament and the judiciary over whether Parliament had unlimited power to amend Fundamental Rights. **[1 Mark]**

• **Establishment of Basic Structure:** The 13-judge bench ruled that while Parliament can amend any part of the Constitution under Article 368, it cannot alter its 'Basic Structure'. **[1 Mark]**

• **Inviolable Features:** Features like democracy, rule of law, federalism, secularism, separation of powers, and judicial review form the untouchable constitutional core. **[1 Mark]**

• **Judicial Prerogative:** Vested the judiciary with the ultimate power to decide what constitutes the basic structure in future litigations. **[1 Mark]**

• **Democratic Preservation:** Prevented temporary ruling majorities from turning the democratic republic into an authoritarian state through constitutional amendments. **[1 Mark]**

6. Evaluate the role of the Indian judiciary as the ultimate protector of Fundamental Rights and interpreter of the Constitution. **[Score: 6 Marks]**

Answer & Key Valuation Steps:

• **Guardian of the Constitution:** The judiciary interprets the text, values, and intentions of the Constitution, resolving ambiguities and preserving constitutional supremacy. **[1 Mark]**

• **Writ Protector (Articles 32 and 226):** Issues powerful writs to restrain executive excess and nullify administrative actions that infringe upon civil liberties. **[1.5 Marks]**

• **Power of Judicial Review (Article 13):** Evaluates parliamentary statutes and state enactments; any law that contravenes Part III is declared unconstitutional and void. **[1.5 Marks]**

• **Dynamic Rights Expansion:** Reinterpreted Article 21 (Right to Life and Personal Liberty) to encompass right to privacy, dignified livelihood, education, and clean water. **[1 Mark]**

• **Arbitrator of Federal Disputes:** Settles jurisdictional conflicts between Union and States under Article 131, maintaining federal equilibrium. **[1 Mark]**